

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint submitted to this Agency on May 19, 2023, and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the complainant) exercised the right of Access against ORANGE ESPAGNE, S.A.U. (hereinafter, the respondent).

The complainant states that, after requesting access from the respondent, including the individuals or stores that have accessed their data, they received no response from Orange, indicating that they should contact the State Security Forces and Corps.

SECOND: After analyzing the documentation submitted, having communicated the subject of the complaint to the respondent, and having analyzed the response from the latter, this Agency rejected the complaint indicating the following:

"... (Furthermore, this company wishes to point out that the personal information of the data subject has not been communicated to third parties, having been processed either directly by Orange or by the distribution channel that is responsible for the processing of this company, and in no case does this processing constitute a communication of data for the purposes of the GDPR)." Once the reasons presented by the respondent, which are part of the file, were analyzed, this Agency considers that the requested right has been addressed. For this reason, in accordance with the provisions of Article 65 of the LOPDGDD, the Director of the Spanish Data Protection Agency AGREES to reject the complaint...

THIRD: The complainant, in total disagreement, submits a motion for reconsideration which is resolved favorably through a resolution with the following conclusions:

"...In this case, the respondent has stated that it has responded to all requests from the appellant, denying access to the data of the employees on the grounds that such information falls outside the scope of the right of access. However, the appellant states that they requested access not to the identities of the workers, but to the stores or operator numbers that consulted their data and the reasons for doing so (...) Consequently, the respondent has not demonstrated that it has provided the data requested by the appellant regarding the consultation of their data and the purposes of these consultations, due to the calls received from collection companies and advertising. Therefore, in this case, along with the motion for reconsideration, new relevant facts have been presented regarding the matter raised, and the motion filed should be upheld..."

FOURTH: On December 19, 2023, the respondent is again notified of the complaint, the motion for reconsideration submitted by the complainant, and the favorable resolution of said motion, so that within ten working days it may present any allegations it deems appropriate.

The respondent, in summary, states in its allegations that it has resolved the doubts raised by the complainant in the motion for reconsideration.

Namely:

"...The Complainant in the Optional Motion for Reconsideration indicated that since they have two mobile numbers with Orange and had received a call from the same number, first on one number and then on the other, having never linked one number to the other, they considered it possible that Orange or another company in the sector had provided their data to the company that made the calls. Well, this company wishes to point out that the complainant's data is accessible to the entire distribution channel in the role of data processors; however, in this case, it has been verified that no store has accessed or processed Mr. A.A.A.'s data for commercial purposes. It has also been verified that the complainant's numbers have not been part of any campaign issued to Orange's customer portfolio.

Well, this company reiterates the allegations made in the information request and in the response submitted during the hearing phase to the interested party in the Optional Motion for Reconsideration issued within the framework of the reference file, through which it was demonstrated that Orange

attended to all requests for the right of access exercised by Mr. A.A.A....”

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate. The complainant has not submitted any allegations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, and the provisions...

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regulatory provisions issued in its development and, insofar as they do not contradict them, with a subsidiary character, by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including "ordering the controller or processor to address requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not adversely affect the rights and freedoms of others.

V

Conclusion

During the processing of this procedure, the entity being complained about has responded to this Agency, but does not demonstrate having addressed the request made by the complaining party, sending the required response to their request.

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After the transfer made as a result of the appeal for reconsideration submitted by the claimant, the responding party has replied to this Agency but has not provided evidence of having sent a response to the claimant.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be directed to the claimant informing them about the decision made regarding the request for the exercise of rights is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge ORANGE ESPAGNE, S.A.U. with NIF A82009812, to send to the claimant, within ten working days following the notification of this resolution, a certification addressing the requested right or a reasoned denial indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period.

Non-compliance with this resolution could result in the commission of an infringement of art. 83.6 of the GDPR, classified as very serious for the purposes of prescription in article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with art. 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ORANGE ESPAGNE, S.A.U.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

1381-090823

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